



CHAPTER lxxv.

An Act to confirm a scheme approved and certified by the Board of Education under the Charitable Trusts Act 1853 relating to Christ's Hospital School Foundation in the City of Winchester. A.D. 1925.
[31st July 1925.]

WHEREAS in pursuance of sections fifty-four to sixty of the Charitable Trusts Act 1853 and under the Board of Education Act 1899 and the Board of Education (Powers) Orders in Council 1900 to 1902 the Board of Education have approved and certified the Scheme set out in the Schedule to this Act and that Scheme is specially distinguished and set forth in a report made by the Board of Education to His Majesty in the month of February nineteen hundred and twenty-five and laid before both Houses of Parliament :

And whereas that Scheme requires the confirmation of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1.—(1) The Scheme set out in the Schedule to this Act is hereby confirmed.

Confirma-
tion of
scheme.

(2) Nothing in this Act or in that Scheme shall take away abridge or affect any power or jurisdiction now

[Price 2d. Net.]

[Ch. lxxv.] *Board of Education* [15 & 16 GEO. 5.]
Scheme (Winchester, Christ's Hospital School
Foundation) Confirmation Act, 1925.

A.D. 1925. exercisable or hereafter to become exercisable by the
— High Court or by the Charity Commissioners or the
Board of Education as the case requires with respect
to the Foundation or the Charity referred to in that
Scheme or with respect to any Scheme affecting that
Foundation or that Charity.

Short title. 2. This Act may be cited as the Board of Education
Scheme (Winchester Christ's Hospital School Foundation)
Confirmation Act 1925.

SCHEDULE.

A.D. 1925.

Scheme approved and certified by the Board of Education under the Charitable Trusts Acts 1853 to 1894 in the matter of Christ's Hospital School Foundation in Winchester.

THE FOUNDATION AND THE CHARITY.

1. In this Scheme—

- (a) The expression "the Foundation" means Christ's Hospital School Foundation in the City of Winchester regulated by a Scheme made under the Endowed Schools Acts on 13 May 1896 as altered by Schemes of 6 April 1900 24 September 1909 and 5 August 1921 which Foundation comprises the educational endowment as determined by an Order of the Charity Commissioners of 28 June 1904 of the Charity called Christ's Hospital in Winchester.
- (b) The expression "the Charity" means the said Charity exclusive of the Foundation.

ALTERATION OF SCHEME.

2. The said Scheme of 1896 as altered as aforesaid is hereby further altered so as to give effect to the provisions of this Scheme.

PAYMENT TO THE CHARITY.

3. A yearly sum of 200*l.* shall be paid out of the income of the endowment of the Foundation in augmentation of the income of the Charity.

QUESTIONS UNDER SCHEME.

4. Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined conclusively by the Board of Education upon such application made to them for the purpose as they think sufficient.

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A.D. 1925.

INTERPRETATION.

5. The Interpretation Act 1889 applies to the interpretation of this Scheme as it applies to an Act of Parliament.

DATE OF SCHEME.

6. The date of this Scheme shall be the day on which the Royal Assent is given to any Act of Parliament by which this Scheme is confirmed.

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